

M/s Pawan Putra Ice and Cold Storage v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 March 2018 · WRIT - C No. - 10877 of 2018 · **Writ dismissed; petitioner left to invoke Clause 7.10 CGRF/Ombudsman.**

HEADNOTE

A writ challenging recovery of electricity dues is not entertained where Clause 7.10 of the Electricity Supply Code, 2005 affords a statutory alternative remedy before the Consumer Grievance Redressal Forum and Ombudsman. The petition was dismissed, leaving the petitioner free to invoke Clause 7.10 if so advised.

FACTUAL SUMMARY

M/s Pawan Putra Ice and Cold Storage filed a writ petition in the Allahabad High Court against recovery proceedings started by the respondent-corporation for outstanding dues for consumption of electrical energy. The petitioner raised a factual dispute over those dues. Respondents included the State of Uttar Pradesh and others. The Division Bench of Krishna Murari and Ajay Bhanot, JJ. disposed of the petition on 29 March 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative remedy — CGRF and Ombudsman for recovery of electricity dues

HOLDING

A writ petition challenging recovery of outstanding electricity dues will not be entertained when the petitioner has a statutory alternative remedy under Clause 7.10 of the Electricity Supply Code, 2005 of approaching the Consumer Grievance Redressal Forum and Ombudsman, before which the factual dispute can be effectively gone into; the petition is dismissed with liberty to invoke Clause 7.10 if so advised. ¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY OF OUTSTANDING ELECTRICITY DUES AND THE UNDERLYING FACTUAL DISPUTE

Left open for the petitioner to raise before the Consumer Grievance Redressal Forum and Ombudsman under Clause 7.10. ¶ 1